

“An unfair business practice occurs when the practice offends an established public policy or when the practice is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers.” (*Podolsky v. First Healthcare Corp.* (1996) 50 Cal. App. 4th, 632, 647.) The unfair standard is also intentionally broad, “thus allowing courts maximum discretion to prohibit new schemes to defraud.” (*Searle v. Wyndham Intl.* (2002) 102 Cal. App. 4th 1327, 1334.) “A business practice is ‘fraudulent’ within the meaning of section 17200 if it is “likely to deceive the public. [Citations.] It may be based on representations to the public which are untrue, and also those which may be accurate on some level, but will nonetheless tend to mislead or deceive.” (*Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal. App. 4th 1342, 1380.) Although the facts must be pled with reasonable particularity, the standard is more lenient than the standard applied to common law fraud claims. (*Gutierrez supra*, 19 Cal. App. 5th at 1261.)

Here, Plaintiffs allege that Defendant committed unfair business practices by (1) failing to provide repair facilities to service vehicles to conform to the express warranties reasonably close to where Plaintiffs’ vehicle was sold; (2) failing to provide their authorized repair facilities service and repair literature to allow them to conform the vehicles to the express warranties; (3) failing to inform consumers of their warranty rights on their repair orders; (4) failing to pay their authorized repair facilities for work done under the express warranty; and (5) trying to coerce Plaintiffs and other members of the public to sign confidentiality clauses. (FAC, ¶¶26.) The fraud claims are based on Defendants’ alleged oral misrepresentations to deceive Plaintiffs to believe that they would benefit from the purchasing a vehicle under warranty. (Id at ¶¶33.)

While not entirely derivative of the breach of implied warranty claim, the UCL cause of action is not pled with the requisite specificity. It is not clear what was represented regarding the warranty and who made the misrepresentation or when. Likewise, the allegations of unfair practices are vague. SUSTAINED WITH LEAVE TO AMEND.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2503063	MARQUEZ VS DATE PALM PETROLEUM, INC'S	HEARING RE: MOTION TO COMPEL DEPOSITION OF PERSON MOST KNOWLEDGEABLE OF DATE PALM PETROLEUM, INC. BY FELIPE MARQUEZ

Tentative Ruling: No tentative ruling. Hearing will be conducted on Thursday, August 27, 2026 at 8:30 a.m. in Department PS2.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2505821	HERNANDEZ VS ERKIES FAMILY CORPORATION DBA ERKIES CORPORATION	NOTICE OF MOTION AND MOTION OF DEFENDANT, ERKIES FAMILY CORPORATION DBA ERKIES CORPORATION TO QUASH SERVICE OF PROCESS

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is an alleged wrongful termination suit filed February 2026.

Defendant now moves for an order quashing the alleged substituted service that was purportedly made on February 03, 2026 at 2:50 PM. Defendant contends that it was denied due process of law when it was never personally served with a copy of the Summons and First Amended Complaint and therefore never received actual (or constructive) notice of the existence of the First Amended Complaint having been filed or served. Defendant contends that Plaintiff never attempted to personally serve Erkie's designated Agent for Service of Process, Dane Feldman, before attempting to effectuate "substituted service" on employees of Erkie's as required by Code of Civil Procedure ("CCP") Section 415.20[(b)], which states that substituted service may only be accomplished after Plaintiff has made several attempts to personally serve a defendant with legal process.

In Opposition, Plaintiff contends that Defendant's motion rests on a mistaken reading of CCP § 415.20. Defendant argues Plaintiff was required to first make multiple attempts at personal service before using substituted service. This reasonable diligence argument applies the wrong subdivision. For corporations, service is governed by Code of Civil Procedure sections 416.10 and 415.20(a), which does not have a reasonable diligence requirement like subsection (b).

Motion to Quash Service

CCP § 416.10 permits service on a corporation by delivering the summons and complaint to the corporation's designated agent for service of process. Section 415.20(a), in turn, expressly allows substituted service in lieu of personal delivery to persons specified in section 416.10 by leaving the documents during usual office hours in that person's office with the person apparently in charge, followed by first-class mailing.

The governing statute here is Section 415.20(a). Section 415.20(a), unlike Section 415.20(b), the subsection relied upon by Defendant, does not have any "reasonable diligence" requirement. Section 415.20(a) specifically incorporates the statutory requirements for service on corporations set forth in Section 416.10. As corporations (unlike individual defendants covered by Section 415.20(b)) must specifically register with the State of California, must designate a registered agent, and must provide a specific address at which service is authorized, substitute service is sufficient without any prior "reasonable diligence".

As explained in practice guides "[t]he critical difference in using substitute service for individual, as opposed to entity, defendants is that a good faith effort at personal service must first be attempted. i.e. there must be a showing that summons "cannot with reasonable diligence be personally delivered" to the individual defendant. (CCP § 415.20(b)) (No such showing is necessary for substitute service on entity defendants; see CCP § 415.20(a))." (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial § 4:196 (The Rutter Group 2025).)

Here, Plaintiff complied with CCP § 415.20(a). (See, Declaration of Jason Smith ("Smith Decl."), ¶ 5). On February 3, 2026, Plaintiff served the First Amended Complaint and Summons on Erkie's Family Corporation dba Erkie's Corporation by serving Dane Michael Feldman, Agent for Service, at 72078 Corporate Way, Suite 102, Thousand Palms, California 92276. (See, Smith Decl., ¶ 5, Exhibit 3). Specifically, Keren Heavlin, from Janney & Janney delivered the First Amended Complaint and Summons to Cyndi A. Doe, a 34-year-old female office personnel who was apparently in charge. (Id.). On February 5, 2026, Rachelle Waight from Janney & Janney, also mailed by pre-paid first class, a true and correct copy of the First Amended Complaint and summons to Dane Michael Feldman at the proper address. (Id.).

Accordingly, Defendant received actual notice of the Plaintiff's First Amended Complaint, meaning that there is no due process issue, and Defendant's Motion will be denied.